

The Merchant shipping (Distress Messages & Navigational Warnings) Rules, 1964.

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The Merchant shipping (Distress Messages & Navigational Warnings) Rules, 1964.

UNION OF INDIA

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The Merchant shipping (Distress Messages & Navigational Warnings) Rules, 1964.

Rule THE-MERCHANT-SHIPPING-DISTRESS-MESSAGES-NAVIGATIONAL-WARNINGS-RULES-1964 of 1964

Published on 17 January 1964

Commenced on 17 January 1964

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The Merchant shipping (Distress Messages & Navigational Warnings) Rules, 1964.

Published vide Notification Gazette of India, 1964, Part 2, Section 3(i), page 249.

1792.

G.S.R. 157, dated 17th January, 1964. - In exercise of the powers conferred by Section 356 read with Section 458 of the Merchant Shipping Act, 1958 (

44 of 1958

), and in supersession of the Indian Merchant Shipping (Distress Messages and Navigational Warnings) Rules, 1934, the Central Government hereby makes the following rules, the same having been previously published as required by the said section 356, namely :-

1.

Short title, commencement and application.

(1)

These rules may be called the Merchant Shipping (Distress Messages and Navigational Warnings) Rules, 1964.

2.

They shall come into force at once.

3.

They shall apply to ---

(a)

Indian vessels wherever they may be;

(b)

Other vessels whilst they are within India, including the territorial waters thereof.

2. Urgency Signal.

(1)

The urgency signal shall be used in case where a vessel has a very urgent message to transmit concerning the safety of the vessel or a person on board the vessel or within sight, but not in cases where the vessel is threatened by grave and imminent danger and requires immediate assistance.

(2)

The urgency signal consists of.-

(a)

when sent by radiotelegraphy, three repetitions of the group XXX in the Morse Code with the letters of each group and those of the successive group clearly separated from each other, and

(b)

when sent by radiotelephone, the spoken word "PAN"(pronounced as the French word 'PANNE') repeated to three times,

(3)

The signal shall precede the message which it is desired to transmit.

3. Safety Signal.

(1)

The safety signal shall be used when reporting any danger to navigation such as dangerous ice, a dangerous derelict, a tropical storm or when giving important meteorological warnings.

(2)

The safety signal consist of ----

(a)

when sent by radiotelegraphy, three repetitions of the group "TTT" in the Morse Code with the letters of each group and those of the successive group clearly separated from each other, and.

(b)

when sent by radiotelephone, the spoken word "SECURITE"(pronounced "SAYCURITAY") repeated 3 time

(3)

The safety signal shall precede the messages which it is desired to transmit.

4.

Distress Signal.

(1)

The distress signal shall be used or displayed when a vessel or an aircraft or other vehicle on the water is threatened by grave and imminent danger and requires immediate assistance.

(2)

The distress signal may be used or displayed in any one or more of the following ways, namely :-

(a)

a gun or other explosive signal fired at intervals of about a minute;

(b)

a continuous sounding with any fog-signal apparatus;

(c)

rockets or shells, throwing red stars fired one at a time at short intervals;

(d)

a signal made by radiotelegraphy or by any other signaling method consisting of the group(S.O.S.) in the Morse Code:

When sent by radiotelegraphy, the distress signal consists of three repetitions of the group SOS in the Morse Code transmitted as a single signal in which the dashes are emphasized so as to be distinguished clearly from the dots.

(e)

a signal sent by radiotelephony, consisting of three repetitions of the spoken word "Mayday";

(f)

the International Code signal of distress indicated by N.C.

(g)

a signal consisting of a square flag having above or below it a ball or anything resembling a ball;

(h)

flames on the vessel (as from a burning tar barrel, oil barrel, etc.);

(i)

a rocket parachute flare or a hand flare showing a red light;

(j)

slowly and repeatedly raising and lowering arms outstretched to each side.

(3)

The Distress Signal shall precede the Distress Call and Message.

(4)

The use of the distress signal in any one of the ways specified in sub-rule (2) except for the purpose mentioned in sub-rule (1), or the use of any signal which is likely to be confused with the distress signal in one of the ways referred to in sub-rule (2) is prohibited.

Note. - Vessels in distress may use the radiotelegraph alarm signal or the radiotelephone alarm signal to secure attention to distress calls and messages.

The radiotelegraph alarm signal, which is designed to actuate the radiotelegraph auto alarms of vessels so fitted, consists of a series of twelve dashes, sent in one minute the duration of each dash being 4 seconds, and the duration of the interval between 2 consecutive dashes being one second.

The radiotelephone alarm signal consists of 2 tones transmitted alternatively over period of from 30 seconds to one minute.

5.

Revocation of Distress Signal.

- If, after sending out any distress signal by means of radio, the Master of the vessel which controlled the distress traffic subsequently finds that assistance is no longer required, he shall immediately send out a message notifying that assistance is no longer required and normal working may be resumed.

6.

Prohibition of misuse of Signals.

(1)

The urgency signal the safety signal or the distress signal shall not be used by any vessel without the authority of the Master of the vessel.

(2)

The Master of a vessel shall not order the use of the distress signal unless he is satisfied.

(a)

that his vessel is threatened by grave and imminent danger or that another vessel, aircraft or other vehicle is so threatened and cannot of itself send that signal, and

(b)

that the vessel in danger, whether his own vessel or another vessel, aircraft or other vehicle, as the case may be, requires immediate assistance in addition to any assistance then available to her.

7.

Transmission of Navigational Warnings.

(1)

The Master of a vessel shall, on meeting with dangerous ice, a dangerous derelict, a tropical storm or any other direct danger to navigation, send by all means of communication at his disposal, information relating to the matters set forth in the Schedule to these rules.

(2)

Such information shall be sent to vessels in the vicinity and to the person in charge of the time being of the nearest coast station with which it is possible for the vessel to communicate. If that station is not a coast radio station, the information shall be accompanied by a request that it be sent forthwith to the nearest coast radio station. Such information may be addressed to all stations if necessary.

(3)

Such information shall be sent in English or by means of the International Code of Signal.

(4)

Such information, when sent by means of radio, shall commence with an indication of the nature of the danger to which it relates and shall be preceded by the "Safety Signal" repeated three times.

8.

Speed of Transmission.

(1)

When transmitted by radiotelegraphy in the Morse Code, the speed of transmission of any message preceded by the distress, urgency or safety signal shall not in general exceed sixteen words per minute.

(2)

When transmitted by radiotelephone, transmissions shall be made slowly and distinctly, each word being clearly pronounced to facilitate transcription.

9.

Penalty.

- Whoever commits a breach of any of these rules shall be punishable with fine which may extend to one thousand rupees.

Schedule

[See Rule 7 (1)]

A. On meeting with dangerous ice, a dangerous derelict or any other direct danger to navigation (except a tropical storm), the Master shall send information relating to the following matters namely:-

(i)

the kind of ice, derelict or other danger observed;

(ii)

the position of the ice, derelict or other danger when the observation was made;

(iii)

the Greenwich Mean Time and date when the observation was made.

B. On meeting with a tropical storm, the Master of the vessel shall send a statement that a storm has been encountered as also information relating to the following matters, namely:-

(i)

the Greenwich Mean Time, date and position of the ship at the time the storm was encountered;

(ii)

the true course and the speed of the reporting vessel when the observation was made; and so far as is practicable ---

(iii)

the barometric pressure with an indication as to whether such pressure is given in millibars, inches or millimeters and as to whether the reading is corrected or uncorrected;

(iv)

barometric tendency (the change in barometric pressure during the past few hours);

(v)

the wind force according to the Beaufort Scale;

(vi)

the true direction of the wind;

(vii)

the state of the sea (smooth, moderate, rough or high);

(viii)

the swell (slight, moderate, heavy) and the true direction from which it comes;

(ix)

the period or length of swell (short, average or long).

Note. - In cases where information has been furnished by the Master of a vessel regarding a tropical storm, it is desirable that so long as the vessel remains subject to the influence of the storm, other observations be made and transmitted hourly if possible, but in any case, at intervals of not more than three hours.

C. On meeting with winds of force 10 or above on the Beaufort, scale for which no storm warning has been received, the Master, shall send messages containing information as given in paragraph (b) and may omit details about sea and swell.

D. On meeting sub-freezing air temperatures associated with gale force winds causing severe ice accretion on superstructures, the Master shall send messages in respect of the following matters: -

(i)

Time and date (Greenwich Mean Time);

(ii)

Air Temperature;

(iii)

Sea Temperature (if practicable);

(iv)

Wind force and direction.

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